



Siemens Mobility - MerMec

MN-01105

Phase 1 Determination

Acquisition may be put into effect

12 August 2026

1. Determination and statement of reasons

Notified acquisition	Siemens Mobility Holding B.V. (Siemens Mobility Holding) proposes to acquire 100% of the share capital of MerMec S.p.A. (MerMec) (the Acquisition) from its holding company, Angelo Holding S.r.l. (Angelo Holding). ¹
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Siemens Mobility Holding, is an investment vehicle and wholly owned subsidiary of Siemens Aktiengesellschaft (Siemens AG), a German stock corporation with registered seats in Berlin and Munich (Germany) and headquartered in Munich. Siemens AG is the ultimate parent of the Siemens group of companies (Siemens). The Acquisition is being led by Siemens AG's wholly controlled subsidiary and mobility business, Siemens Mobility GmbH. Unless otherwise specified, Siemens Mobility Holding and Siemens Mobility GmbH are together referred to as SMO. SMO operates in Australia through its subsidiary, Siemens Mobility Pty Ltd, and supplies: • signalling systems (technology to control railway traffic) • rolling stock (wheeled vehicles used on railway systems) • rolling stock diagnostics (technology used to monitor the condition of rolling stock) • rail infrastructure diagnostics (technology to detect defects on rail infrastructure, such as railway lines), to a limited historical extent. The target, MerMec, is an Italian company headquartered in Monopoli, Italy. It is wholly owned by Angelo Holding. MerMec operates in Australia through its subsidiary, MerMec Australia Pty Ltd and in Australia supplies rail infrastructure diagnostics, rolling stock diagnostics, and products used in steel and industrial manufacturing quality control. MerMec and SMO are together referred to as the Parties.
Overlap between the parties	In Australia, the Parties overlap in the supply of rolling stock diagnostics and rail infrastructure diagnostics. MerMec's rail infrastructure diagnostic components can also be installed on rolling stock and supplied with SMO's rolling stock.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in

¹ Angelo Holding will continue to own Mont Saint Michel S.A.S (**MSM**), which wholly owns Compagnie des Signaux (**CSEE**) (formerly Hitachi Rail STS France S.A.S). Prior to the Acquisition, Angelo Holding will transfer its shareholding in MSM and another related entity, Angelstar S.r.l, into a NewCo. CSEE has historically supplied track circuits in Australia but is not currently active in Australia and Angelstar has no Australian operations or activities.

	Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties, and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The Parties are not close competitors in the supply of rolling stock diagnostics or rail infrastructure diagnostics. • The merged firm would continue to face competition from multiple alternative suppliers of rolling stock diagnostics and rail infrastructure diagnostics in Australia. • The merged firm would be unlikely to have the ability and incentive to foreclose rival suppliers of rolling stock by denying or limiting their access to rail infrastructure diagnostics components, given there are multiple alternative suppliers of such components in Australia. • The merged firm would be unlikely to have the ability and incentive to foreclose rival suppliers of rail infrastructure diagnostics by denying or limiting their access to customers of those components by limiting installation on the merged entity's rolling stock, given rolling stock OEMs are not significant purchasers of these components and there are multiple alternative acquirers of such components in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act